

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MAY 20, 2026
8:30 a.m.

4. WILFRIDO HERNANDEZ BAUTISTA V. JOANNA T. ROJAS

23FL1226

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent to modify child custody and visitation. The original RFO was filed on December 11, 2025. An updated RFO was filed on February 11, 2026, with a hearing date set for March 25, 2026.

Prior to the March 25 hearing, the court issued a tentative ruling stating that service of the updated RFO was untimely (proof of service filed March 11, 2026, showed that the updated RFO was personally served upon the Petitioner only 12 court days before the March 25 hearing).

Both parties appeared at the hearing on March 25, 2026. The court re-referred the parties to a CCRC session set for April 10, 2026.

To date, however, the Respondent has still not filed proof of service of the updated RFO. The court is in receipt of a "One Parent" CCRC report dated April 10, 2026, stating that only the Respondent appeared for the appointment.

Due to the lack of proper service, the RFO is denied without prejudice.

TENTATIVE RULING #4: DUE TO THE LACK OF PROPER SERVICE, THE RFO IS DENIED WITHOUT PREJUDICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.